

BETA PARTICIPATION AND LICENSE AGREEMENT

Effective Date: 11/19/2025

Platform: Briefcase AI (<https://observe.briefcasebrain.io/>)

This Beta Participation and License Agreement (the "Agreement") is entered into by and between **Briefcase Brain** ("Company," "we," or "us") and the undersigned tester ("Tester" or "you").

1. BACKGROUND

The Company is developing an SDK and agent observability platform known as **Briefcase Brain** (the "Product"). The Tester desires to access the Product prior to its general commercial release to evaluate its functionality and provide feedback.

2. GRANT OF LICENSE

Subject to the terms of this Agreement, Company grants Tester a non-exclusive, non-transferable, revocable, limited license to:

- Access the web-based observability dashboard at <https://observe.briefcasebrain.io/>.
- Download, install, and integrate the Briefcase Brain SDKs into Tester's applications solely for the purpose of internal testing and evaluation.

3. BETA DISCLAIMER (PLEASE READ)

The Product is currently in a "Beta" state. By signing this Agreement, you acknowledge and agree that:

- **Experimental Nature:** The Product may contain bugs, errors, and other problems that could cause system failures or data loss.
- **No Warranty:** THE PRODUCT IS PROVIDED "AS IS", WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED.
- **Non-Production Use:** The Product is intended for testing environments. Using the SDK in a live production environment is done entirely at the Tester's own risk.

4. DATA PRIVACY & SECURITY

Given the nature of the Product as an observability platform:

- **Data Transmission:** You acknowledge that the SDK will transmit data (logs, traces,

agent inputs/outputs) from your environment to the Company's servers.

- **Prohibited Data:** You agree **NOT** to use the SDK to process or transmit sensitive Personally Identifiable Information (PII), financial data (PCI), or Protected Health Information (PHI) unless explicitly agreed upon in a separate Data Processing Agreement (DPA).
- **Usage:** The Company is authorized to analyze transmitted data to improve the Product's stability, performance, and feature set.

5. CONFIDENTIALITY

The Tester acknowledges that the Product contains trade secrets and confidential information (including the dashboard UI, API structure, and performance metrics).

- **Restriction:** Tester agrees not to disclose, publish, or share any information regarding the Product—including screenshots, video walkthroughs, or benchmarks—with third parties without prior written consent.

6. FEEDBACK AND INTELLECTUAL PROPERTY

Any suggestions, bug reports, or feedback provided by the Tester ("Feedback") regarding the Product shall remain the property of the Company. The Tester hereby assigns all rights in such Feedback to the Company without any entitlement to compensation.

7. RESTRICTIONS

The Tester shall not:

1. Reverse engineer, decompile, or disassemble the SDKs.
2. Use the Product to build a competitive observability or AI monitoring service.
3. Share login credentials with third parties.

8. LIMITATION OF LIABILITY

IN NO EVENT SHALL THE COMPANY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES (INCLUDING LOST PROFITS OR LOSS OF DATA) ARISING OUT OF THE USE OF THE PRODUCT. THE COMPANY'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED \$100.00 USD.

9. TERM AND TERMINATION

This Agreement is effective upon acceptance and will continue until terminated by either party. The Company reserves the right to terminate Tester's access to the Product at any time. Upon termination, Tester must remove the SDK from their applications.

-----ACCEPTANCE

By signing below (or by clicking "I Agree" within the digital workflow), the Tester acknowledges they have read, understood, and agreed to be bound by the terms of this Agreement.

FOR THE TESTER:

Name:

Company/Organization:

Date:

Signature:
